

limitations on the exercise of the taxing and spending power and not simply that the enactment is generally beyond the powers delegated to Congress by Art. I, § 8. Pp. 102-103.

4. The taxpayer-appellants here have standing consistent with Art. III to invoke federal judicial power since they have alleged that tax money is being spent in violation of a specific constitutional protection against the abuse of legislative power, *i. e.*, the Establishment Clause of the First Amendment. *Frothingham v. Mellon*, *supra*, distinguished. Pp. 103-106.

271 F. Supp. 1, reversed.

*Leo Pfeffer* argued the cause for appellants. With him on the briefs were *David I. Ashe*, *Ernest Fleischman*, and *Alan H. Levine*.

*Solicitor General Griswold* argued the cause for appellees. With him on the brief were *Assistant Attorney General Weisl*, *Alan S. Rosenthal*, and *Robert V. Zener*.

*Sam J. Ervin, Jr.*, argued the cause and filed a brief for Americans for Public Schools et al., as *amici curiae*, urging reversal.

Briefs of *amici curiae*, urging reversal, were filed by *Melvin J. Sykes* and *Sanford Jay Rosen* for the Council of Chief State School Officers et al.; by *Henry C. Clausen* for United Americans for Public Schools; by *Norman Dorsen* and *Charles H. Tuttle* for the National Council of Churches; by *Franklin C. Salisbury* for Protestants and Other Americans United for Separation of Church and State, and by *Arnold Forster*, *Edwin J. Lukas*, *Joseph B. Robison*, *Paul Hartman*, and *Sol Rabkin* for the American Jewish Committee et al.

Briefs of *amici curiae*, urging affirmance, were filed by *J. Albert Woll*, *Laurence Gold*, and *Thomas E. Harris* for the American Federation of Labor and Congress of Industrial Organizations; by *Julius Berman* and *Reuben E. Gross* for the National Jewish Commission on Law and Public Affairs, and by *Herbert Brownell*, *Thomas F. Daly*, and *William E. McCurdy, Jr.*, for *Spira et al.*